

The Claremont City Council held a meeting on Wednesday, July 14, 2021, in the Council Chambers of City Hall.

The meeting was called to order by Assistant Mayor Damren at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
At-Large Councilor Dale Girard
At-Large Councilor Michael Demars
Assistant Mayor Allen Damren
At-Large Councilor Debora Matteau
Ward II Councilor James Contois
Ward III Councilor Jonathan Stone

Absent:

At-Large Councilor Nicholas Koloski
Mayor Charlene Lovett

Also present:

Edward Morris, City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

None.

REPORT OF THE SECRETARY

A motion was made by Councilor Matteau and seconded by Councilor O’Hearne to accept the minutes of the June 22, 2021, City Council meeting.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 7-0.

A motion was made by Councilor O’Hearne and seconded by Councilor Matteau to accept the minutes of the June 23, 2021, City Council meeting.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 7-0.

A motion was made by Councilor O’Hearne and seconded by Councilor Matteau to accept the minutes of the June 30, 2021, City Council meeting, as amended.

Mr. Morris said the following changes for Resolution 2022-2 To Adopt the 2022 General Fund Budget for the City of Claremont – Public Hearing were needed:

- Page 4 – City Administration “914,189” should be “907,189”
- Page 5 – Police Department “3,216,129” should be “3,211,129”
 - Fire Department “2,550,496” should be “2,555,496.”

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 7-0.

MAYOR’S NOTES

None.

CITY MANAGER’S REPORT

- **Water Shutoff Update** – As of the date this report was written, the water shutoffs for past due bills from 11/30/2020 (second round of shutoffs), are currently at 29 single family homes and 10 multifamily homes. These shutoffs will begin on July 13, 2021. The

number of shutoffs currently scheduled are lower, in both categories, than they were in the first round, which ended up with very few homes actually being shutoff.

At this time, there are two single family home shutoffs.

October/April 2019 water shutoffs were very similar to now. There has not been a big increase as we are coming out of COVID.

- **4th of July** – Thanked all the people that helped make the City’s 4th of July Celebration a success. Due to weather, we had to postpone the festivities until July 5th, but we still had a good turnout and great time. He thanked McGee Toyota of Claremont for sponsoring our spectacular fireworks show.
- **Pleasant Street** - Work on Pleasant Street has begun. As previously reported, installation of the temporary light at Glidden and Broad Street will be the first part of the project, so traffic flow on Pleasant Street and Glidden can be changed to one way (scheduled for July 19, 2021). Once this is completed, a temporary water line will be established, before the utility work on Pleasant Street begins. The utility work will be the majority of the project this summer, replacing the 70+ year old infrastructure, and completing the stormwater/sewer separation. B.U.R. Construction will keep one lane of traffic open on Pleasant Street during construction. Project updates will be posted on the City’s website and he will keep the City Council and public updated in his City Manager Reports as the project continues.
- **Monadnock Mills** – Regarding the Peterson Mill building, the Planning and Development Department continues to work closely with Chinburg on the Monadnock Mills Apartment renovation. This project has a tentative leasing date of early 2022.
- **NHDES Award**- The City of Claremont was recognized for the development of a new source water protection plan that outlines key actions to improve public education, water security and other steps to protect the city’s water supply reservoir. The plan establishes clear objectives to monitor key water quality parameters, reduce non-point pollution and expand public education. Other priority actions involve controlling geese and beavers to reduce bacteria and other pathogens, and implementing best practices for recreational land uses and forestry to limit non-point source pollution, among others.

He talked about the leaky water pipe on Washington Street and that the lead coupling was replaced.

For the next Council meeting, the Zoom link will be posted on Facebook and the City’s website. People will be able to watch the meeting, but Staff is not able to monitor Zoom. The meeting will be shown on Facebook Live and on CCTV live.

He said that last week, the position of Treasurer/Assistant Finance Director was offered to Pam Dyer. She will start July 19.

- **Grants** – The Governor and Council have approved the following grant funds for the City of Claremont:
 - Authorized the extension of the Community Development Block Grant (CDBG) in the amount of \$500,000 (originally approved by G&C on 8-14-19, item #29), for the completion of the Turning Points Network relocation and rehabilitation project, extending the completion date to June 30, 2022 from June 30, 2021.
 - CDBG award in the amount of \$300,000, on behalf of Claremont Learning Partnership to support the purchase of the property situated at 169 Main Street, Claremont, NH. Effective June 16, 2021 through December 30, 2023.
 - Award a grant to the City of Claremont, NH, in the amount not to exceed \$500,000 for water system improvements. Effective upon G&C approval through June 1, 2024. 100% Drinking Water and Groundwater Trust Fund. (2) Further authorize a loan agreement with the City of Claremont, NH, in the amount not to exceed \$1,500,000 to finance water system improvements. This is the final approval of the \$2,000,000 we applied for. Of the \$2,000,000, \$500,000 will be a grant and \$150,000 will be forgiven, leaving a \$1,350,000 SRF Loan for the City to repay.
 - The library was recently awarded \$4,136.00 in ARPA funding through the New Hampshire State Library. This funding will be used to purchase a collection of circulating educational tablets for children and a live online tutoring service.

COVID-19 Update

- **COVID-19 Update** – As of the date of this report the City's Active COVID-19 cases are below 4. The City will continue to monitor active cases of COVID-19 throughout the City. With the end of the State of Emergency, the State of New Hampshire has closed the Emergency Operations Center and the Joint Information Center, which had been staffed since March of 2020. Along with these closures, the state managed vaccination sites have also closed, with COVID vaccines now available at doctor's offices, clinics, and pharmacies. The City still encourages citizens who have not been vaccinated to get vaccinated in an effort to protect themselves, their families and others against the spread of COVID-19. As you may have heard, the Delta variant is highly contagious and those who are not vaccinated are at the most risk of contracting the virus.

Councilor Stone asked for a 139-147 Main Street Project update. Mr. Morris said they are continuing to rebuild the wall and doing interior updates. Part of the wait was due to lead paint remediation.

Councilor Girard said regarding the Pleasant Street Project, that a new parking sign on Franklin Street appears to be pointing toward the bank parking lot. Mr. Morris said he can look at it. It should be directed toward City-owned lots.

Councilor Girard asked if Planning and Zoning Boards will also be available on Facebook Live. Mr. Morris said he will look to see if that can be done. He is looking for other ways to do that, other than using Zoom.

APPOINTMENT TO BOARDS AND COMMITTEES

Frances J. Tolles Home Trustees

A motion was made by Councilor Girard and seconded by Councilor Matteau to re-appoint Karlaine V. Livingston to seat 2 of the Frances J. Tolles Home Trustees.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 7-0.

Parks and Recreation Commission

A motion was made by Councilor Matteau and seconded by Councilor Girard to re-appoint Jeffrey Coburn to seat 7 – Ward III of the Parks and Recreation Commission.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 7-0.

Policy Committee

A motion was made by Councilor Demars and seconded by Councilor Stone to appoint Fred Thompson to seat 4 of the Policy Committee.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 7-0.

CITIZEN’S FORUM

Walt Stapleton, Ward 3, said he is a member of the Station Host Association of Claremont, NH. Amtrak Vermonter services resume July 19 with two trains a day, 7 days a week. He talked about the celebrations that have been scheduled for the restart of the Vermonter. He talked about some of the expenses that Station Hosts pay out of their own pockets (i.e. supplies, vests, hats, information shelves). He said they have contacted Amtrak for help with the expenses, however information flow is difficult, but they are considering it. He asked the City for a stipend of \$250/month for expenses and \$150/month for a port-a-potty (\$200, if handicap accessible). Assistant Mayor Damren asked Mr. Stapleton for a proforma list for the Council. Councilor Stone asked the City Manager to coordinate a plan of action with Mr. Stapleton on this and bring it back at the next meeting. Regarding the celebration in Claremont, Mr. Stapleton said the volunteers will be on duty; there will be music from a local band; and ice cream sandwiches will be sold. The public is welcome to attend. Councilor Demars said he’ll be one of the passengers. Mr. Morris said the City will have a pop-up tent with information.

OLD BUSINESS

Legislative Update

None.

Licensing of Land Along the Rail Trail along 287-299 Washington Street Rail Trail

Mr. Morris said this was last addressed April 14, 2021 and he was asked to get the attorney’s opinion. The attorney agreed this could be done. Mr. Morris said that the Reed property was added. The City is trying to address issues that have been going on since we’ve owned the Rail Trail. A couple of other places have been identified and we will work with the Council about how to handle them going forward. This is for a license agreement for the Sheazach property,

the Reed property and for two accesses that have been in use for a very long time, but do not have legally deeded accesses.

He believes there is one private resident, but he will need to do more research.

A motion was made by Councilor Girard and seconded by Councilor Stone to take Licensing of Land Along the Rail Trail along 287-299 Washington Street Rail Trail off the table.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - abstain

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 6-0, 1 abstain.

A motion was made by Councilor Girard and seconded by Councilor Stone that the Claremont City Council hereby authorizes the City Manager or his designees to negotiate and enter into a License Agreement with Sheazach Property Management, LLC for the use of the City-owned property from the property line in front of Parcels 133-57, 133-58, 133-59 to the edge of the Rail Trail.

License will be for ten (10) years, subject to payment of property taxes levied on Licensee's use of the property and subject to a provision that the license may be terminated, without penalty, at the City's discretion. This license is personal to Sheazach Property Management, LLC and effective only as long as they are the owners of the property.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - no

Contois - no

Stone - yes

Motion carried 5-2.

A motion was made by Councilor O'Hearne and seconded by Councilor Stone that the Claremont City Council hereby authorizes the City Manager or his designees to negotiate and enter into a License Agreement with Scott G. Reed for the use of the City-owned property from the property line in front of Parcel 133-56 to the edge of the Rail Trail.

License will be for ten (10) years, subject to payment of property taxes levied on Licensee's use of the property and subject to a provision that the license may be terminated, without penalty, at the City's discretion. This license is personal to Scott G. Reed and effective only as long as he is the owner of the property.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - no

Contois - no

Stone - yes

Motion carried 5-2.

A motion was made by Councilor Demars and seconded by Councilor Stone that the Claremont City Council hereby authorizes the city manager, or his designees, to take such actions as may be necessary to enter into two crossing agreements following compliance review and consultation with the State of New Hampshire, with Sheazach Property Management, LLC, the owners of 297-299 Washington Street, Map 133, Lots 57, 58, and 59, for the proper management and administration of the City's interests in that portion of the abandoned Claremont Concord Branch railroad right-of-way.

Councilor Contois mentioned the concerns brought forth by Jim Feleen. Councilor Contois said this is City land and it's a park. He talked about the State liquor store moving its parking lot out of the Rail Trail right-of-way. He said this license gives authority to use the City's land and he's not happy with it.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - no

Contois - no

Stone - yes

Motion carried 5-2.

Ordinance 586 Water Rates – Second Reading – Public Hearing

The purpose of this proposed change is to amend the City's water rates in order to establish new rate schedules for the next five (5) fiscal years from 2022 to 2026. The changes to these rates reflect the City's needs to address estimated operating costs, depreciation and existing debt obligations of the Claremont Water System. The increases to each rate schedule seek to

implement an incremental change for each fiscal year in order to responsibly introduce such charges for the City's water users in a fashion that does not impose a drastic financial impact for any particular fiscal year covered by this amendment.

It is the hope of the City that the slight annual increase to these water rates, for each fiscal year under this amendment, will be a gradual and acceptable way to address the financial needs of the City's Water System during this timeframe, but avoids users experiencing an extreme increase of cost in any of the years under these new schedules. This change is requested by the City Manager.

Mr. Morris said there have been no changes in the water rates since the last meeting.

A motion was made by Councilor O'Hearne and seconded by Councilor Stone to suspend Council Rules so that Councilors don't have to read Ordinances 586, 588, and 583 into the record.

Roll call vote:

O'Hearne - yes

Girard - no

Demars - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 6-1.

A motion was made by Councilor Girard and seconded by Councilor Matteau to adopt Ordinance 586 Water Rates.

Councilor Girard read the Explanation of Proposed Action into the record.

Assistant Mayor Damren opened the public hearing. No one spoke. He closed it.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 7-0.

Ordinance 588 Sewer Rates – Second Reading – Public Hearing

The purpose of this proposed change is to amend the City's sewer rates in order to establish new rate schedules for the next five (5) fiscal years from 2022 to 2026. The changes to these rates reflect the City's needs to address estimated operating costs, depreciation and existing debt obligations of the Claremont Sewer System. In addition, the Ordinance seeks to amend the City's Code in order to reflect that these sewer rates will be charged, going forward, on a quarterly basis rather than, the semiannual basis that currently exists within the Code. As with the City's water rates, the City is seeking to implement incremental changes to the sewer rates in order to avoid drastic increases, in any particular fiscal year, for users of the City's Sewer System.

It is the hope of the City that changing the sewer rates and by creating additional billing periods for each fiscal year, will provide for the financial needs of the Sewer System in a responsible and gradual fashion. This change is requested by the City Manager.

Mr. Morris said as discussed at the last meeting, in section 2, the section numbers were changed to letters. The changes were approved by Attorney Tanguay.

A motion was made by Councilor Matteau and seconded by Councilor Girard to adopt Ordinance 588 Sewer Rates.

Councilor Matteau read the Explanation of Proposed Action into the record.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 7-0.

NEW BUSINESS

Approve 2021 OHRV Wheeled Vehicle Enforcement Grant (City Manager)

Police Chief Mark Chase said this has been an annual request for a number of years; this allows patrols on the Rail Trail.

Councilor Stone asked, since the ATV trails have opened, if there have been any complaints regarding Cat Hole. Chief Chase said there has been a lot of activity, but nothing came to mind as being overly egregious.

Chief Chase said he has done patrols and people are very happy to see Police out there.

A motion was made by Councilor O’Hearne and seconded by Councilor Stone that the Claremont City Council hereby authorizes the City Manager, or his designees, to accept and expend a grant in the amount of three thousand, two hundred, forty dollars (\$3,240.00) and to enter into an agreement with the State of New Hampshire Fish and Game Department for the purpose of Off Highway Recreational Vehicle enforcement by the Claremont Police Department.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 7-0.

Ordinance 583 Zoning Ordinance Amendment – Article X Solar Ordinance – First Reading

Mr. Morris said the solar ordinance was written and run past the Energy Advisory Committee and the Claremont Planning Board.

Nancy Merrill, Planning and Development Director, said that currently the zoning ordinance does not identify solar power. Currently, there are a number of solar projects in the works and are on hold pending this ordinance approval.

A motion was made by Councilor Matteau and seconded by Councilor Girard to adopt Ordinance 583 Zoning Ordinance Amendment – Article X Solar Ordinance – First Reading.

Councilor Matteau read the Explanation of Proposed Action into the record.

Councilor O’Hearne asked that Erica Sweetser’s name be changed to Michael Demars.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Contois - yes
Stone - yes
Motion carried 7-0.

CDBG Public Facility Application

Ms. Merrill said the first two items are for projects that have already received funding.

1. CDBG Planning Study Grant – Sugar River Cooperative infrastructure. To present, and take public comment on, the Sugar River Cooperative infrastructure planning study at 38 Upham Place. (Public Hearing)

Leighton Eastman, President, Sugar River Cooperative, Inc., said that half of the park is on a three-quarter inch copper line and the other half is on a two-inch steel line. He talked about the leaks. The system is old and undersized. This is to upgrade the water system.

Ms. Merrill said that Dubois & King made two recommendations and the City is recommending a hybrid of the two options with a pipe going to individual meters in the park. The Park will own and maintain the line within their parcel. It will be a 4-inch line that is estimated at \$380,000.

Assistant Mayor Damren read: In June 2021, DuBois & King Engineering completed an infrastructure study at Sugar River Cooperative, a 30 unit manufactured housing park at 38 Upham Place. The engineers recommend replacing the 50+ year old water distribution with either 4" or 8" watermain at a cost estimate of approx. \$270,000 - \$435,000. A municipal sewer connection would cost approximately \$625,099. Paving after improvements would be \$77,550.

Assistant Mayor Damren opened the public hearing and asked if anyone from the public would like to comment.

Mr. Eastman said the address to the Park is 40 Upham Place, not 38, as stated.

Assistant Mayor Damren closed the public hearing.

2. CDBG Public Facilities Grant - To update the public on, and take comment on, the progress of the purchase of 169 Main Street by the Claremont Learning Partnership. (Public Hearing)

Ms. Merrill said that the Claremont Learning Partnership wanted to secure a building for One-4-All, childcare programs, Baby Steps, WIC, and the Teen Center. It's been a social service center for a long time. They offer services from birth through high school.

Cathy Pellerin was not yet available to speak, so Council moved on to Sugar River Cooperative Proposed Infrastructure Improvements Project.

Ms. Merrill said this application is to implement the recommendation of the grant.

Assistant Mayor Damren said that the information document was on the website prior to the public hearings and available at the public hearing.

Assistant Mayor Damren said that Community Development Block Grant funds are available to municipalities through the NH Community Development Finance Authority. Up to \$500,000 annually is available for economic development projects, up to \$500,000 for public facility, up to \$500,000 for housing projects, and up to \$500,000 for emergency activities. Up to \$25,000 is available per planning study grant. All projects must directly benefit a majority of low and moderate income persons.

3. CDBG Public Facility Grant Application – The City proposes to submit an application for funding titled Community Development Block Grant (CDBG) Public Facilities Grant for up to \$500,000 from its application authority for 2021 to the NH Community Development Finance Authority for infrastructure improvements for the Sugar River Cooperative, a 30 unit manufactured housing park at 40 Upham Place.
 - a. Motion to Approve Application for Grant – Public Hearing

Assistant Mayor Damren opened the public hearing and asked the public to speak. No one spoke. He closed the public hearing.

A motion was made by Councilor Demars and seconded by Councilor Matteau that the Claremont City Council hereby approves the submission of a Community Development Block Grant application for infrastructure improvements for Sugar River Cooperative, a 30 unit manufactured housing park at 40 Upham Place in Claremont, to the New Hampshire Community Development Finance Authority in an amount not to exceed \$500,000 (consistent with public hearing notice) and to further authorize the City Manager to sign and submit the application, and upon approval of the CDBG application, authorize the City Manager to execute any documents which may be necessary to effectuate the CDBG contract and any amendments thereto.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 7-0.

- c. Motion to Approve Residential Anti-displacement and Relocation Plan for the proposed Sugar River Cooperative application – Public Hearing

Assistant Mayor Damren opened the public hearing and asked if anyone from the public would like to comment. No one spoke. He closed the public hearing.

Ms. Merrill said this project is for water/sewer infrastructure and no displacement or relocation is anticipated.

A motion was made by Councilor Girard and seconded by Councilor Matteau that the Claremont City Council hereby moves to adopt the City's Residential Anti-Displacement and Relocation Assistance Plan for the proposed Sugar River Cooperative Infrastructure Improvements project.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 7-0.

Cathy Pellerin, Claremont Learning Partnership, said that they closed on the 169 Main Street building on June 1. They are turning it into a social services building. Construction of the teen shelter is now complete and is scheduled to open September 7. She gave a brief description of the programs (charter school, child care, Connected Families NH, Baby Steps, WIC, and Rogue Robots (4-H program)). She said they are licensed as a homeless youth shelter.

Assistant Mayor Damren opened the public hearing and asked if anyone from the public would like to comment. No one spoke. He closed the public hearing.

4. CDBG/CDBG-CV Grant Application – The City proposes to submit an application for funding titled Community Development Block Grant (CDBG) Public Facilities or Covid application for up to \$500,000 from its application authority for 2021 to the NH Community Development Finance Authority for TLC Family Resources Center at 54 Pleasant Street for tenant improvements.

- b. Motion to Approve Application for Grant – Public Hearing

Ms. Merrill said this is for up to \$500,000 to be used for improvements at the TLC Center. It is expected this and the grant for Sugar River will be less than the \$500,000.

Mr. Demars said his company has a contract for IT services for TLC. He asked if he should recuse himself. Councilors said yes.

Assistant Mayor Damren opened the public hearing and asked if anyone from the public would like to comment. No one spoke. He closed the public hearing.

A motion was made by Councilor Matteau and seconded by Councilor Girard that the Claremont City Council hereby approves the submission of a Community Development Block Grant/CDBG-CV application for the TLC Family Resource Center proposed improvements at 54 Pleasant Street to the New Hampshire Community Development Finance Authority in an amount not to exceed \$500,000 (consistent with public hearing notice) and to further authorize the City Manager to sign and submit the application, and upon approval of the CDBG/CDBG-CV application, authorize the City Manager to execute any documents which may be necessary to effectuate the CDBG/CDBG-CV contract and any other amendments thereto.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - abstain

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 6-0, 1 abstain.

- c. Motion to Approve Residential Anti-Displacement and Relocation Plan for the proposed TLC application - Public Hearing

Assistant Mayor Damren opened the public hearing and asked if anyone from the public would like to comment. No one spoke. He closed the public hearing.

A motion was made by Councilor O'Hearne and seconded by Councilor Matteau that the Claremont City Council hereby moves to adopt the City's Residential Anti-Displacement and Relocation Assistance Plan for the proposed TLC Family Resource Center improvements at 54 Pleasant Street project.

Ms. Merrill said that no displacement or relocation is anticipated.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - abstain

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 6-0, 1 abstain.

5. CDBG Planning Grant Application – The City proposes to submit an application for funding titled Community Development Block Grant (CDBG) Planning application for up to \$25,000 from its application authority for 2021 to the NH Community Development Finance Authority for Nick Koloski at 3 Princeton Street to study the feasibility of four new housing units and upgrades to three additional housing units.

- d. Motion to Approve Application for Grant – Public Hearing

Ms. Merrill said the next two items are for the planning grants. Each one is for up to \$25,000 to study the feasibility of a project.

Councilor Stone said he felt it prudent to have Mr. Koloski present for this discussion.

A motion was made by Councilor Stone and seconded by Councilor O’Hearne to table this and the Anti-Displacement and Relocation items until July 28, 2021.

Roll call vote:

O’Hearne - yes

Girard - no

Demars - yes

Damren - yes

Matteau - no

Contois - no

Stone - yes

Motion carried 4-3.

6. CDBG Planning Grant Application – The City proposes to submit an application for funding titled Community Development Block Grant (CDBG) Planning application for up to \$25,000 from its application authority for 2021 to the NH Community Development Finance Authority for Topstone Holdings LLC, 101 Mulberry Street to update architect and engineer’s plans and study the feasibility of up to 48 new units of housing.

- e. Motion to Approve Application for Grant – Public Hearing

Ms. Merrill this is a planning grant that would allow Topstone to look at the feasibility of creating 48 new units of housing.

Assistant Mayor Damren opened the public hearing and asked if anyone from the public would like to comment. No one spoke. He closed the public hearing.

Councilor Stone asked about the architectural plan that was done 10 years ago. Ms. Merrill said there were architectural drawings that were done 10 years ago. Ms. Merrill said there was an architectural plan regarding housing. She said with this planning grant, they would update all of that. Also, there are five monitoring wells outside the site in order to try to determine the source of the contamination. Councilor Stone asked whether or not they have been able to determine the source of the contamination. Ms. Merrill said they have not, they are still testing. Contacting the Department of Environmental Services would be a part of the feasibility study. Vapor barrier applications would be a part of what the architect would look at. Issues were identified in 2018. Follow-up has been done with the abutting property owner. She said this plan will look at the issues.

Councilor Matteau spoke about the need for housing in Claremont. Currently there is a 0% vacancy rate in Claremont. If you want to develop in Claremont, people need a place to live. Ms. Merrill talked about diminishing return across the board. You can't bring in business, because there is no housing. It's a vicious cycle.

Mr. Morris said the hospital is looking for staffing, but cannot get them here because there is no housing. We need to look at the future for this building.

Councilor Contois said it is up to the property owner to spend his own money, not taxpayer money. He's not in favor of this.

Ms. Merrill said that low to moderate income for a family of 4 is up to \$68,000.

Assistant Mayor Damren opened the public hearing and asked if anyone from the public would like to comment.

Walt Stapleton, Ward 3, said that 25 years ago, when the Topstone building was for sale, he toured the building and was impressed with the solid nature of the construction despite the leaking roof. He thinks it is a real asset for the community. Having housing is a dramatic need. This \$25,000 could determine the feasibility. He said getting low to moderate income homes is a plus.

Assistant Mayor Damren closed the public hearing.

Councilors discussed the owner not being present. Councilor Demars agreed the owner should have been present at the meeting, and he didn't think taxpayer money should be used this way.

A motion was made by Councilor Stone and seconded by Councilor O'Hearne to table this to the next meeting.

Roll call vote:

O'Hearne - yes

Girard - no

Demars - no
Damren - no
Matteau - no
Contois - no
Stone - yes
Motion failed 2-5.

A motion was made by Councilor Matteau and seconded by Assistant Mayor Damren that the Claremont City Council hereby approves the submission of a Planning Study Community Development Block Grant application for 101 Mulberry Street to the New Hampshire Community Development Finance Authority in an amount not to exceed \$25,000 (consistent with public hearing notice) and to further authorize the City Manager to sign and submit the application, and upon approval of the CDBG application, to authorize the City Manager to execute any documents which may be necessary to effectuate the CDBG contract and any amendments thereto.

Councilors continued discussing this item. Regarding the property owner not being present, Ms. Merrill said they were told by the grant writer that they didn't need to attend this meeting.

Councilor Stone talked about the property owner looking for federal grant money and if so, would have to follow federal guidelines. He said that would be the first step toward getting 48 apartments in for low-to-moderate income. He said that does impact schools and it does impact services.

Assistant Mayor Damren said approving the application to study the feasibility of the project does not commit the Council to vote on anything else for the project.

Roll call vote:
O'Hearne - no
Girard - yes
Demars - no
Damren - yes
Matteau - yes
Contois - no
Stone - no
Motion failed 3-4.

- f. Motion to Approve Residential Anti-Displacement and Relocation Plan for the proposed application – Public Hearing

Because the Planning Grant Application was not approved, this was not needed.

7. Claremont's Housing and Community Development Plan and CDBG Citizen Participation Plan.

- g. Motion to re-adopt and approve the Housing & Community Development Plan and CDBG Participation Plan – Public Hearing

Ms. Merrill said the information that was included in the Council packet came out of the Master Plan.

Assistant Mayor Damren opened the public hearing and asked if anyone from the public would like to comment. No one spoke. He closed the public hearing.

A motion was made by Councilor Girard and seconded by Councilor Matteau that the City Council hereby moves to approve and adopt the City's Housing and Community Development Plan and further authorizes the City Manager or his designees to sign and execute all documents related to the Plan.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - yes

Motion carried 7-0.

COMMITTEE REPORTS

None.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Girard handed out to Council a proposed Council Rule change to Rule #45 for a future agenda.

Current

Ordinances shall not be passed until they shall have been read twice, the first and second readings to be on separate days at regular special meetings of the Council, unless otherwise required. The second reading to be only after advertisement of the ordinance and public hearing.

No ordinance shall be revived or reenacted by mere reference to the title thereof, but the same shall be set forth at length as if it were an original ordinance. No ordinance shall be amended by providing that designated words thereof shall be stricken out and

others inserted in lieu thereof, but the ordinance or section as amended shall be set forth in full.

Changes:

Ordinances shall not be passed until they shall have been read twice. ~~(s)~~ At the first reading the explanation of proposed ordinance or the ordinance in its entirety may be read. ~~(and)~~ At the second reading, ~~(s)~~ the entirety of the ordinance will be read, prior to the public hearing, which is to be held on a separate day ~~(s)~~ at regular ~~(special)~~ meeting ~~(s)~~ of the Council, unless otherwise required. The second reading to be only after advertisement of the ordinance and public hearing.

No ordinance shall be revived or reenacted by mere reference to the title thereof, but the same shall be set forth at length as if it were an original ordinance. No ordinance shall be amended by providing that designated words thereof shall be stricken out and others inserted in lieu thereof, but the ordinance or section as amended shall be set forth in full.

New

45. - Readings.

Ordinances shall not be passed until they shall have been read twice. At the first reading the explanation of proposed ordinance or the ordinance in its entirety may be read. At the second reading, the entirety of the ordinance will be read, prior to the public hearing, which is to be held on a separate day at regular meeting of the Council, unless otherwise required. The second reading to be only after advertisement of the ordinance and public hearing.

No ordinance shall be revived or reenacted by mere reference to the title thereof, but the same shall be set forth at length as if it were an original ordinance. No ordinance shall be amended by providing that designated words thereof shall be stricken out and others inserted in lieu thereof, but the ordinance or section as amended shall be set forth in full.

Red – removed from original **Blue** – Added to the original

Councilors agreed to add this to the first meeting in August.

Councilor Stone asked to schedule a nonpublic session for personnel in August.

Mr. Morris read the list of action items.

- Signs for Pleasant Street parking on Franklin Street
- Look at ways to do Facebook Live for Council and other meetings (i.e. Planning and Zoning Boards)
- Update in City Manager Report regarding 139-147 Main Street
- Work with Representative Stapleton on the resolution for the Station Host Program
- Future agenda items: proposed Council Rule change and schedule Non-public for Personnel

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 8:54 p.m., a motion was made by Councilor Stone and seconded by Councilor O'Hearne to adjourn.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Contois - yes

Stone - no

Motion carried 6-1.

Respectfully Submitted,

Dorée M. Russell

Clerk to the Council